

23TRCV02570 23TRCV02570

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 23TRCV02570 Hearing Date: July 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ERIN HOWARD, an individual

;

Plaintiff,

vs.

SPECTRUM LABORATORY

PRODUCTS, INC. d/b/a spectrum

chemical mfg. corp.

, et al.;

Defendants.

Case

No.:

25TRCV04206

Hearing

Date:

July

28, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT SPECTRUM LABORATORY PRODUCTS, INC.'S
MOTION TO STRIKE ALLEGATIONS AND CLAIMS FROM PLAINTIFF ERIN HOWARD'S
COMPLAINT

MOVING PARTY: Defendant, Spectrum Laboratory
Products, Inc.

RESPONDING

PARTY: Plaintiff, Erin Howard

(1)

Defendant

Spectrum Laboratory Products, Inc.'s Motion to Strike Allegations and Claims
from Plaintiff Erin Howard's Complaint is DENIED pursuant to Code of Civil
Procedure section 435.

The Court considers the moving papers filed on June 5, 2026, the
opposition brief filed on July 14, 2026, and the reply brief filed on July 21,
2026.

BACKGROUND

Factual

Background

On December 11, 2025, plaintiff Erin Howard ("Plaintiff") filed the

Complaint against defendants Spectrum Laboratory Products, Inc. d/b/a Spectrum Chemical Mfg. Corp. ("Spectrum") and DOES 1 through 50. The Complaint includes the following causes of action: (1) Sex/Gender-Based Discrimination; (2) Sex/Gender-Based Harassment; (3) Failure to Prevent, Correct and Remedy Discrimination and Harassment; (4) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (5) Retaliation for Complaints of Discrimination and Harassment; (6) Wrongful Termination; (7) Intentional Infliction of Emotional Distress; and (8) Negligent Infliction of Emotional Distress.

On April 16, 2026, the Court sustained Spectrum's demurrer as to the first, second, third, fifth, seventh, and eighth causes of action, while denying Spectrum's motion to strike as moot.

(April 16, 2026 Minute Order, pp. 5-10; Declaration of Sarah A Swanson ("Swanson Decl."), ¶ 3, Exh. B.) Furthermore,

Plaintiff was granted leave to amend the Complaint within twenty (20) days; however, Plaintiff did not avail themselves of this opportunity. (April 16, 2026 Minute Order, p. 10; Swanson Decl., Exh. B.)

On May 19, 2026, Spectrum filed the Ex Parte Application for an Order Dismissing Plaintiff Erin Howard's First, Second, Third, Fifth, Seventh, and Eighth Causes of Action Pursuant to the Court's Ruling on Spectrum's Demurrer. On May 22, 2026, the Court granted the ex parte application. (Swanson Decl., ¶ 4, Exh. C.)

On May 27, 2026, Spectrum's counsel emailed Plaintiff's counsel to discuss the motion to strike. (Swanson Decl., ¶ 5, Exh. D.) Spectrum's counsel seemingly requested that Plaintiff remove their claims for punitive damages and related allegations and proposed a phone call to discuss this matter further. (Swanson Decl., ¶ 5, Exh. D.) However, Plaintiff's counsel did not respond to this email. (Swanson Decl., ¶ 5, Exh. D.)

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it

deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd.

(a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading

which is not essential to the claim is surplusage; probative facts are

surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of

any pleading not drawn or filed in conformity with California law, a court

rule, or an order of the court. (Code

Civ. Proc., § 436, subd. (b).) An

immaterial or irrelevant allegation is one that is not essential to the

statement of a claim or defense; is neither pertinent to nor supported by an

otherwise sufficient claim or defense; or a demand for judgment requesting

relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear

on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

MEET AND CONFER REQUIREMENT

Before motion to strike, the moving

party is required to meet and confer in person, by telephone, or via video

conference with the party that filed the pleading that is subject to the

motion, to determine whether an agreement can be reached that would resolve the

objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) The parties are to meet and confer at least

five days before the date the responsive pleading is due. (Code Civ. Proc., § 435.5, subd. (a)(2).) Thereafter, the moving party shall file and

serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a)(3).) A determination by the court that the meet

and confer process was inadequate shall not be grounds to grant or deny a

motion to strike. (Code Civil Proc., § 435.5,

subd. (a)(4).)

On May 27, 2026, Spectrum's

counsel emailed Plaintiff's counsel to discuss the motion to strike. (Swanson Decl., ¶ 5, Exh. D.) Spectrum's counsel seemingly requested that

Plaintiff remove their claims for punitive damages and related allegations and

proposed a phone call to discuss this matter further. (Swanson Decl., ¶ 5, Exh. D.) However, Plaintiff's counsel did not respond

to this email. (Swanson Decl., ¶ 5, Exh.

D.)

Although the parties did not

engage in the meet-and-confer process as required, the Court will still

consider the merits of the motion to strike.

An insufficient meet-and-confer process is not a valid reason to deny or grant a motion to strike.

DISCUSSION

Spectrum seeks to strike references to punitive and exemplary damages located in paragraphs 40, 46, 54, 57, 59, 63, 68, and 74, as well as in the Prayer for Relief, including the entirety of paragraph 3 and paragraph 4 on page 14, line 12, which states: "For reasonable attorneys' fees under California Government Code § 12965(b)." (Motion, pp. 2:4-4:1.) However, the Court observes that it has already ruled on this matter.

On April 16, 2026, the Court sustained Spectrum's demurrer as to the first, second, third, fifth, seventh, and eighth causes of action, while denying Spectrum's motion to strike as moot regarding the same issue presently before the Court. (April 16, 2026 Minute Order, pp. 5-10; Swanson Decl., ¶ 3, Exh. B.) Although Plaintiff was granted leave to amend the Complaint within a period of twenty (20) days, Plaintiff did not utilize this opportunity. (April 16, 2026 Minute Order, p. 10; Swanson Decl., Exh. B.) Consequently, the operative pleading remains the Complaint filed on December 11, 2025, which was also subject to the prior motion to strike.

Accordingly, Spectrum's motion is DENIED.

ORDERS

1) Defendant

Spectrum Laboratory Products, Inc.'s Motion to Strike Allegations and Claims from Plaintiff Erin Howard's Complaint is DENIED.

2) Spectrum is ordered to give notice of the Court's ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Tamara
Hall

Judge
of the Superior Court